

25SMCV02907 25SMCV02907

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25SMCV02907 Hearing Date: July 13, 2026 Dept: P

Tentative

Ruling

Francesca

Tan v. Lyft, Inc., Case No. 25SMCV02907

Motions:

(1)

Plaintiff's

Motion to Compel Responses to Form Interrogatories and Request for Sanctions

(2)

Plaintiff's

Motion to Compel Responses to Special Interrogatories and Request for Sanctions

(3)

Plaintiff's

Motion to Compel Responses to Request for Production of Documents and Request for Sanctions

(4)

Plaintiff's

Motion o Deem Request for Admissions Admitted

Hearing

Date: July 13, 2026

Background

Plaintiff

Francesca Tan sues Defendants Lyft, Inc., Jeanette Natoli; J.M. Carden Sprinkler Co., Inc. ("J.M. Carden"), and David Earl Rowe, Jr. ("Rowe") for personal injury arising from two car accidents approximately three months apart.

On June 9,
2025, Tan filed the complaint.

On July
23, 2025, Jeanette Natoli answered.

On August
8, 2025, Rowe answered.

On
September 8, 2025, J.M. Carden answered.

On
September 15, 2025, Lyft, Inc. answered.

On
November 3, 2025, Rowe filed a cross-complaint against Gabriel Diaz.

On
November 11, 2025, Tan filed a motion to compel further response to form interrogatories from J.M. Carden.

On January
13, 2026, Tan amended the complaint to name Gabriel Diaz as Doe 1.

On January
20, 2026, the Court granted J.M. Carden's motion to sever.

On
February 20, 2026, the Court sanctioned Plaintiff's attorney \$999 for using AI in opposition to J.M. Carden's motion to sever.

On

February 25, 2026, Plaintiff filed four motions to compel Rowe to respond to form interrogatories, special interrogatories, requests for production of documents, and to deem RFAs admitted. On June 22, 2026, David Earl Rowe, Jr. filed opposition to these four motions. On July 6, 2027, Plaintiff replied.

On May 14,

2025, Plaintiff filed six motions to compel further responses to form interrogatories, special interrogatories, requests for production of documents, and requests for admission 2, 4, and 5 from Rowe.

The

parties have not scheduled an IDC.

Governing Law

If a responding party has not produced any responses to form interrogatories, special interrogatories, requests for production of documents, or requests for admission, they may move to compel the responding party to produce answers, and objections are waived. (See Code Civ. Proc. § 2030.290(a) [interrogatories]; Code Civ. Proc. § 2031.300 [requests for production of documents]; Code Civ. Proc., § 2033.280(a) [requests for admission.].) However, if the responding party produces substantially compliant responses and evidence that mistake, inadvertence, or excusable neglect caused the delay before the motion to compel response is heard, the Court may find the motions to compel responses moot, though the late-responding party may still be sanctioned. (*Sinaiko Healthcare Consulting, Inc., v. Klugman* (2007) 148 Cal.App.4th 390, 409.)

To

be substantially compliant, a response to interrogatories must be verified and must contain the information sought, an exercise of the party's option to produce writings, or an objection to the particular interrogatory. (Code Civ. Proc § 2030.210.) A substantially compliant response to requests for production is a verified statement that the party will comply with the request, a representation that the party lacks the ability to comply with the request, or an objection. (Code Civ. Proc. § 2031.210 et seq.) A substantially compliant response to requests for admission is verified answers the substance of the requested admission or sets forth an objection to the particular request. (Code Civ. Proc. § 2033.210.)

Here, Rowe

contends that he responded to the form interrogatories, special interrogatories, requests for production of documents, and requests for admission on March 30, 2026.

In

reply, Plaintiff argues that service of responses does not divest the trial court of jurisdiction to hear a motion to compel sanctions or to impose sanctions for delay. (Reply, p. 6.) Plaintiff next contends that Rowe's responses are deficient because they contain objections that have been waived. Plaintiff argues that relief from waiver requires Rowe to move separately under Code Civ. Proc. §§ 2030.290(a) and 2031.300(a). (Reply, p.7.) Plaintiff cites no authority requiring Rowe to move separately for relief. Further, any deficiencies Rowe's responses will not be addressed on a motion to compel initial response and should be raised on a separate motion to compel further responses, which can be heard after the parties attend an Informal Discovery Conference pursuant to Department P's standing order.

Analysis

The

Court has reviewed Plaintiff's discovery responses and finds them to be substantially compliant. The responses are verified and substantively respond to the questions asked. Because the responses are substantially compliant, the motion to compel is moot except for the issue of sanctions. (*Sinaiko Healthcare Consulting, Inc., v. Klugman* (2007) 148 Cal.App.4th 390, 409.)

With

respect to sanctions, Rowe submits evidence that his attorney was not aware of the discovery requests because Plaintiff served the requests on Rowe before he answered and before he retained counsel, and then did not respond to his attorney's email requesting copies of any discovery requests that had been sent to her client. (Avedisian Decl., ¶¶ 2-4.)

Sanctions

are mandatory against an unsuccessful moving party or opposing party unless the party's motion or opposition is substantially justified or the failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2030.290 [interrogatories]; Code Civ. Proc. § 2031.300 [requests

for production]; Code Civ. Proc., § 2033.280(c) [requests for admission].) Normally, the Court would award sanctions where a party is forced to file a motion to compel discovery responses in order to obtain code compliant responses. Here, however, Plaintiff served the requests on Rowe before he retained counsel and then did not respond to his attorney's email requesting copies of any discovery requests that had been sent to her client. (Avedisian Decl., ¶¶ 2-4.) This conduct reeks of gamesmanship that the Court is loath to reward. As such, the Court declines to award sanctions.

Plaintiffs

Motions are DENIED.